

**Superior Court of the State of California
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32**

Date: August 11, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	DIXON VS. FCA US, LLC 2024-0142826	MOTION TO COMPEL PRODUCTION Plaintiff Tamara Dawn Dixon’s Motion to Compel Compliance with Responses to Requests for Production is CONTINUED to 9/15/26 at 9:00 a.m. in Dept. C32. The Court finds this discovery dispute can be resolved through additional meet and confer efforts. Thus, it ORDERS the parties to engage in additional efforts within 28 calendar days of this order. The parties are ordered to file a joint statement of remaining issues, including a description of the additional meet and confer efforts, not to exceed 10 pages, no later than calendar 9 days before the hearing.
2.	DUONG VS. NGUYEN 2024-01392566	MOTION TO COMPEL PRODUCTION Plaintiff Duong Thuy Duong’s Motion to Compel Responses to Requests for Production is GRANTED. Defendant Phuong Nguyen is ORDERED to provide responses to Plaintiff’s Requests for Production (set three) without objections within 20 days of this order. (See Code Civ. Proc., § 2031.300(a).) Defendant is ORDERED to pay \$860 in sanctions within 20 days of this order. Defendant failed to timely respond to Plaintiff’s Requests for Production (set three), which were served on February 3, 2026. Thus, Defendant failed to timely serve responses and did not request an extension in violation of Code Civil Procedure section 2031.260.
3.	FELTON VS. AI’S NEW YORK CAFÉ 2024-01423563	MOTION TO COMPEL PRODUCTION Plaintiff Michael Felton’s motion to compel defendant AI’s New York Café to serve further responses to Requests for Production of Documents and responsive documents, Set One, Request Nos. 1, 2, 3, 4, 5, 6, 9, 10, 11, 12, 13, 14, 17, 19, 20, 21, 22, 23, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 61, 65, 66, 67, and 68 is GRANTED. <u>Request Nos. 5, 9, 10-14, 19-23, 29, 30-39, 65-68:</u> Defendant responded to these Requests by stating it “will produce all documents within its possession, custody and control.” However, to date, Defendant has not produced any responsive documents. Defendant is ORDERED to produce all documents responsive to Request Nos. 5, 9, 10-14, 19-23, 29, 30-39, 65-68 within 20-days of notice of this ruling. <u>Request No. 61:</u> Defendant failed to respond to this Request and has waived all objections. (Code Civ. Proc., § 2031.300, subd. (a).)

		Defendant is ORDERED to provide a response without objections and produce all documents responsive to Request No. 61 within 20 days of notice of this ruling. <u>Request Nos. 1, 2, 3, 4, 6, 17, 40, 41, 42, and 43:</u> Defendant responded to these Requests by stating that no responsive documents exist. Defendant's responses fail to satisfy the requirements of Code of Civil Procedure section 2031.230, which requires that a representation of inability to comply "affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand," and "specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." Defendant is ORDERED to provide a further response to Request Nos. 1, 2, 3, 4, 6, 17, 40, 41, 42, and 43 which complies with section 2031.300 within 20 days of notice of this ruling. Plaintiff's request for sanctions is granted in the amount of \$1,600.00, reflecting four hours of counsel's time at \$400/hour, payable within 30 days. Plaintiff to give notice.
4.	CINEMATIC CAPITAL CORP. VS. SAID 2023-01343920	MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Defendant Mohamed Said's Motion to Compel Further Responses to Form Interrogatories, set one, is DENIED. Defendant and his counsel of record, jointly and severally, are ORDERED to pay sanctions in the amount of \$2,500. Defendant seeks to compel further responses to 11 interrogatories which have already been supplemented. The Court finds the issues addressed in the Motion have been resolved through the supplemental responses. Defendant fails to address the supplemental responses in his Motion despite attaching them as an exhibit. Defendant provides no reason why additional information beyond what was provided in the supplemental responses is warranted. Thus, the Court finds Defendant's Motion is without substantial justification and sanctions are warranted against him and counsel. (Code Civ. Proc., § 2030.300(d).)

5	CHOU VS. FCA US LLC 2025-01510392	MOTION TO COMPEL PRODUCTION Plaintiffs Jennifer Weiling Chou and Daniel Joel Gordineer’s Motion to Compel Compliance with Initial Disclosures is CONTINUED to 9/22/26 at 9:00 a.m., in Dept. C32. Defendant produced numerous documents in response to its initial disclosure obligations. Plaintiffs seek additional documents he claims are responsive but were not produced and verifications. The parties are ordered to engage in additional meet and confer efforts, including an in-person, telephone, or videoconference meeting of counsel, no later than 30 calendar days prior to the continued hearing date. If Defendant agrees to serve supplemental responses, Defendant shall serve supplemental verified responses and produce additional documents no later than 20 calendar days prior to the continued hearing date. Plaintiffs’ counsel shall file and serve a supplemental declaration, no later than 9 court days before the continued hearing date and not to exceed five pages, including: (1) a description of the parties’ additional attempts to meet and confer; (2) attaching a copy of Defendant’s supplemental responses, if any; and (3) a concise description of any remaining dispute including identification of the specific requests which remain in dispute. Defendant’s counsel may file a responsive supplemental declaration, not to exceed three pages, no later than 5 calendar days before the continued hearing date.
6.	KTB SUNKIST LLC VS. TALT 2022-01284597	MOTION TO SETTING FAIR MARKET VALUE OF REAL PROPERTY Plaintiffs KTB Sunkist LLC, Karen T. Beardsley and Frank G. Beardsley as Co-Trustees of the Talt Family Trust of the Talt Family 1992 Trust dated April 9, 1992, Bypass TR B-Karen Beardsley TR (collectively, “Plaintiffs”), move for an order (a) setting the fair market value of the real property commonly known as: 1301, 1321 and 1341 South Sunkist Street, and 2419 East Winston Road, Anaheim, California 92806 (the “Property”) at \$41,770,000 based on the appraisal process agreed upon by the parties and (b) sending notice to the Defendants that they may buy all the interests of the Plaintiffs pursuant to California Code of Civil Procedure Section 874.317. The Parties agreed to an appraisal process to determine the fair market value of the Property. (Kimball Decl., ¶ 2.) Specifically, the Parties agreed to jointly retain three appraisers to determine the fair market value of the Property as fee simple, subject to encumbrances (leased fee), as if a single owner as of the date of the filing of this partition action (October 4, 2022). The two closest appraisals will be averaged, unless the highest and lowest appraisal are each within five (5) percent of the value reflected on the middle appraisal, in which case all three appraisals will be averaged. The resulting average will be the

		fair market value provided to the court pursuant to Code of Civil Procedure § 874.316(b). (Kimball Decl., ¶ 3.) That process has been completed resulting in a determination of the fair market value of the Property at \$41,770,000. (Kimball Decl., ¶¶ 4-9, Exs. B-D.) Defendants do not oppose Plaintiffs’ motion to set value. However, Defendants contend Plaintiffs’ Motion fails to mention that the real property subject to the motion is under a line of credit loan with an original commitment of \$836,160. Accordingly, Defendants contend the purchase price stated in the Court’s notice under Code of Civil Procedure section 874.317, subdivisions (b) and (c), should be calculated as follows: the Court-determined value (per Plaintiffs’ motion) minus the outstanding loan balance as of the payment due date set under section 874.317, subdivision (e), with that result then multiplied by Plaintiffs’ 25.0005% interest in the property. The parties are to come prepared to the hearing to discuss the calculation of the purchase price taking into account the lien of credit. Plaintiffs to give notice.
7.	HOME OF THE MINISTERING ANGEL VS. SENECA FAMILY OF AGENCIES 2025-01498434	1. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES 2. MOTION TO COMPEL PRODUCTION 3. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS The hearing on the motions of Defendant Seneca Family of Agencies to compel further responses to the first sets of form interrogatories, requests for admission, and requests for production and to impose monetary sanctions against Plaintiff Home of the Ministering Angel is CONTINUED to 9/22/26 at 9:00 a.m., in Dept. C32. In the joint status report filed by counsel for both sides on 7/27/26 (ROA 221), counsel has represented that they have been meeting and conferring telephonically but that not all issues have been resolved. However, counsel for Plaintiff has indicated that, in late July 2026, Plaintiff served second supplemental responses to the sets of discovery and produced 90 pages of responsive documents. Plaintiff’s counsel states that there are ways to address Defendant’s concern that the current representative of Plaintiff is not competent to execute the verifications, but Plaintiff’s counsel states that they could not have been carried out before the continued hearing date. The Court therefore continues the hearing to permit counsel to further meet and confer and submit another joint status report at

least nine days before the continued hearing date that is no longer than five pages long.

4. MOTION TO EXPUNGE LIS PENDENS

Before the court is Defendant Seneca Family of Agencies' request for attorney fees and costs associated with its Motion to Expunge Lis Pendens, which the court previously granted on 6/9/26. (ROA 197.)

Seneca originally requested attorney fees in the amount of \$159,207.63. (ROA 143.) The court previously ruled the request was unreasonable in amount because the tasks associated with the fee request were not limited to making the motion. The court continued the hearing and ordered Seneca to file a supplemental declaration and billing statements for tasks associated with conducting legal research, preparing the motion, reviewing the opposition, preparing the reply, and attending the hearing. (ROA 197.)

Seneca has amended its request and now seeks \$86,077.50 in fees and \$1,320 in costs. (Suppl. Averett Decl., ¶¶ 3, 5.) The fees represent 80.6 hours of attorney time as follows: (1) 0.2 hours by Margaret A. Fennessey at \$375 per hour; (2) 26.5 hours by Elliott Averett at \$675 per hour; (3) 13.5 hours by Brandon Matthew Wilens at \$770 per hour; (4) 7.2 hours by Anne Redcross Beehler at \$1,100 per hour; (5) 33.2 by David A. Robinson at \$1,500 per hour. (Id., ¶¶ 3-4, Ex. B.)

The court has considered the parties' supplemental briefs and rules as follows:

While the court is required to award attorney fees to the prevailing party after motion to expunge lis pendens, the court is only required to award reasonable attorney fees. (Code Civ. Proc., § 405.38.) The court finds that Seneca's claim for 80.6 hours of time billed primarily by four attorneys for total attorney fees of \$86,077.50 is excessive. Robinson, who bills at the highest rate, accounts for 41% of the total hours billed for the motion. This is unreasonable. The motion to expunge was not so complicated as to warrant the highest billing attorney spending a significant amount of time researching, rewriting and finalizing the motion, plus other related tasks. It also does not warrant four attorneys working on the motion. Four attorneys preparing one motion, a reply and appearing at the hearing show the matter was overstaffed, inefficient and duplicative. Accordingly, the court reduces Robinson and Averett's hours by 10.

The court finds the hourly rates of Robinson and Beehler are excessive and reduced to \$770.

Based on the foregoing, Robinson's hours are reduced to 23.2 and fees awarded in the amount of \$17,864 (23.2 hours x \$770). Averett's hours are reduced to 16.5 and fees awarded in the amount

		of \$11,137.50 (16.5 hours x \$675). Beehler’s fees are awarded in the amount of \$5,544 (7.2 hours x \$770). Wilens’ fees are awarded in the amount of \$10,395 (13.5 hours x \$770). Fennessey’s fees are awarded in the amount of \$75 (0.2 hours x \$375). Accordingly, the court awards a total of \$45,015.50 in attorney fees and \$1,320 in costs.
8.	SHANNON VS. BRIONES 2025-01503515	MOTION TO QUASH DISCOVERY SUBPOENA Plaintiff’s Motion to Quash Defendants’ Deposition Subpoena for Employment Records is DENIED in part and GRANTED in part. <u>Legal Standard</u> Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).) When evaluating a privacy objection, the court applies the following framework: “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. . . . The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552 [citations omitted]). Discovery should not be ordered “if the information sought is available from other sources or through less intrusive means.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:321 [citations omitted].) <u>Plaintiff’s Employment Records</u> At issue are three deposition subpoenas for the production of business records requesting Plaintiff’s employment records. (Mtn., Ex. 1.) The subpoenas request “[a]ny and all employment records, . . .” for Plaintiff. (Mtn., Ex. 1.)

Plaintiff moves to quash the subpoenas in their entirety, or in the alternative, narrow their scope to records relevant to the claims at issue.

“[P]ersonnel records and employment history are within the scope of the protection provided by the state and federal Constitutions.” (*San Diego Trolley, Inc. v. Superior Court* (2001) 87 Cal.App.4th 1083, 1097 [citations omitted; disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557, fn. 8].)

Plaintiff contends the subpoenas are overly broad as they request all employment records despite Plaintiff not alleging any claims for wrongful termination, discrimination, or emotional distress arising from employment. Rather, Plaintiff contends her claims implicate only the limited employment-related issues of wage loss and diminished earning capacity resulting from the injuries sustained in the subject collision.

As such, Plaintiff requests, in the alternative, narrowing the subpoenas to include those records that reflect:

- (1) Wage and earnings information;
- (2) Time missed from work;
- (3) Records relating to medical leave associated with the subject injuries; and
- (4) Records reflecting work restrictions or accommodation attributable to Plaintiff’s medical condition arising from the incident.

(Mtn. at 7:8-15.)

In opposition, Defendants contend the requested records are necessary to assess Plaintiff’s credibility, to determine the truth of the matters in dispute (i.e., whether she missed time from work), and to evaluate the liability issues in this matter. (Opp. at 4:11-13.)

Defendants further contend Plaintiff may have been required to have a physical prior to her employment and may have presented work restrictions unrelated to the subject incident. (Opp. at 4:13-15.)

The Court finds a request for “any and all employment records” is overly broad as they relate to employment issues unrelated to those claimed by Plaintiff. With respect to her employment, Plaintiff has placed at issue wage loss and diminished earning capacity resulting from the injuries allegedly sustained in the subject collision. The requested records would disclose Plaintiff’s employment information unrelated to those damages, such as, for example, any disciplinary action and medical information (unrelated to the body parts at issue).

While Defendants refer to the general interest in establishing credibility, veracity, and liability served by the records sought, “[t]he party seeking discovery must show a particularized need for the confidential information sought. The broad ‘relevancy to the

		subject matter’ standard is <i>not</i> enough here. The court must be convinced that the information is <i>directly relevant</i> to a cause of action or defense, i.e., that it is <i>essential</i> to determining the truth of the matters in dispute.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:320 [citations omitted, emphasis in original].) Similarly, Defendants’ speculation Plaintiff “may have” been required to have a physical prior to her employment or have work restrictions unrelated to the subject incident does not demonstrate the records are essential to determining the truth of the matters in dispute. Moreover, Defendants failed to demonstrate there are less intrusive means of obtaining the information, such as written discovery to Plaintiff. Thus, the Court DENIES Plaintiff’s motion to quash, but GRANTS Plaintiff’s motion to limit scope of the subpoenas to the following: (1) Wage and earnings information; (2) Time missed from work; (3) Records relating to medical leave associated with the subject injuries; and (4) Records reflecting work restrictions or accommodation attributable to Plaintiff’s medical condition arising from the incident.
9.	GONZALEZ VS. COSTCO WHOLESALE CORPORATION 2026-01540078	MOTION TO QUASH SUBPOENA Plaintiff Mayra Gonzalez’s motion to quash the Amended Deposition Subpoena for Production of Business Records served by defendant Costco Wholesale Corporation upon Friends of Family Health Center is GRANTED in part and DENIED in part. Pursuant to Code of Civil Procedure section 1987.1, the Court may “make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders,” upon motion by a party. (Code Civ. Proc. §1987.1(a) and (b)(1).) On May 7, 2026, Defendant served an Amended Deposition Subpoenas for the Production of Business Records on Friends of Family Health Center (“Subpoena”). The Subpoena contains two document requests which seek records from January 1, 2023 to the present concerning Plaintiff’s complaints or symptoms of a psychological nature, and billings related to Plaintiff’s complaints or symptoms of psychological conditions. Plaintiff objects to the Subpoena on the grounds of privacy.

The right to privacy extends to medical records. (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1198). “The right to privacy, however, is not absolute.” (*Grafilo v. Wolfsohn* (2019) 33 Cal.App.5th 1024, 1034.) Plaintiffs “may not withhold information which relates to any physical or mental condition which they have put in issue...” (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 864 (*Britt*).) “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. ...The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) “A court must then balance these competing considerations.” (*Id.*). “The burden is on the party seeking the constitutionally protected information to establish direct relevance.” (*Davis v. Superior Ct.* (1992) 7 Cal.App.4th 1008, 1017.)

However, “plaintiffs are ‘not obligated to sacrifice all privacy to seek redress for a specific [physical,] mental or emotional injury’; while they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this lawsuit, they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past.” (*Britt, supra*, 20 Cal.3d at p. 864 [internal citations omitted].)

Here, the documents requested by the Subpoena are relevant to Plaintiff’s allegations in her Complaint that she suffered severe emotional distress, severe anxiety, panic attacks, and declining mental health, as a result of Defendants’ conduct. The Subpoena is also narrowly tailored except to the extent it seeks documents relating to complaints or symptoms of “high blood pressure” which Defendant has not shown is a psychological condition. Plaintiff has not placed hypertension or any cardiovascular condition at issue in this litigation, and the inclusion of “high blood pressure” is not sufficiently tailored to the emotional distress claim asserted. Although Plaintiff objects to references to “sleeplessness, lack of appetite or other stomach upset,” these can be indicative of complaints or symptoms of emotional distress.

Based on the foregoing, the Subpoena is modified to remove the phrase “high blood pressure” from both requests.

Plaintiff to give notice.

10.	DEL REPOSO ASSOCIATION VS. DEL REPOSO CONDOS, LLC 2022-0130000	MOTION FOR CONTINUANCE OF TRIAL Defendant Clark Pacific’s motion to continue the current trial date of August 28, 2026, is GRANTED. California Rules of Court, rule 3.1332, governs motions for continuance of a trial. Rule 3.1332, subdivision (a) states, “To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain.” (Cal. Rules Ct., rule 3.1332, subd. (a).) “Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: . . . [¶] (5) The addition of a new party if: [¶] (A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or [¶] (B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party’s involvement in the case; ...[¶] (7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial. (Cal. Rules Ct., rule 3.1332, subd. (c).) “In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: [¶] (1) The proximity of the trial date; [¶] (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party; [¶] (3) The length of the continuance requested; [¶] (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; [¶] (5) The prejudice that parties or witnesses will suffer as a result of the continuance; [¶] (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; [¶] (7) The court’s calendar and the impact of granting a continuance on other pending trials; [¶] (8) Whether trial counsel is engaged in another trial; [¶] (9) Whether all parties have stipulated to a continuance; [¶] (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and [¶] (11) Any other fact or circumstance relevant to the fair determination of the motion or application.” (Cal. Rules Ct., rule 3.1332, subd. (d).) Trial is currently set for August 28, 2026. Defendant contends a trial continuance is necessary due to the significant, unanticipated change in the status of the case resulting from the Case Management Order not being entered more than 180 days after filing and the fact that there are several necessary parties that have not yet appeared in this matter. Specifically, defendants Del Reposo Condos, LLC; Calvin Nguyen and Alzate Building Corporation are still in the process of serving their respective cross-complaints and bringing required parties into this case. As a result, the parties that have not yet appeared
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		have not had a reasonable opportunity to conduct discovery and prepare for trial, nor have the other parties had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new parties' involvement in the case. This is sufficient to show good cause. Defendant seeks to continue trial until April 5, 2027. Plaintiff has shown that it will be prejudiced by continuance until April 2027 since this action was filed in December 2022 and it was Defendants that failed to add and serve the additional indispensable parties until now. Further, Plaintiff contends that with each passing day, the defects at the property continue to worsen. Based on the foregoing, the Court will grant continuance until February 2027. Trial is CONTINUED to 2/12/27 at 9:00 a.m. in Dept. C32. Moving Defendant to give notice.
11.	KIM VS. TRAN 2026-01566561	MOTION TO CONSOLIDATE Plaintiff Harinne Kim's Motion is CONTINUED to 8/25/26 at 9:00 a.m., in Dept. C32. Plaintiff failed to comply with California Rules of Court, rule 3.350(a)(1)(A). Rule 3.350(a)(1)(A) is mandatory; thus Plaintiff is ORDERED to file a code compliant notice by August 14, 2026. The Court shortens the required notice period to seven (7) court days to accommodate the hearing date.
12.	WEBER VS. MORADO 2025-01511904	DEMURRER TO AMENDED CROSS-COMPLAINT Defendants/cross-complainants Corinne Morado, Gencare Connects, Inc., and Daian Corporation's Demurrer to Plaintiffs Rosalie Lu Weber and Rudolf Weber's First Amended Complaint is OVERRULED in part and SUSTAINED in part with 20 days leave to amend. <u>First Cause of Action for Breach of Contract</u> "To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage." (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307 [citation omitted].) Plaintiffs allege the parties entered into two stock sale agreements and Defendants breached those agreements, which resulted in damages to Plaintiffs. (FAC ¶¶ 97-103.) Plaintiffs also allege Defendants breached two separate oral agreements. (FAC ¶ 104.)

Defendants/cross-complainants contend Plaintiffs' allegations regarding any oral contracts are barred by the statute of frauds and conflict with the provisions of the written agreements.

A determination of whether the terms of the written agreements preclude any additional oral agreements is not appropriate for demurrer.

Moreover, "a general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861 [citation omitted].)

Plaintiffs have sufficiently alleged its breach of contract cause of action with respect to the written agreements.

The Court OVERRULES the demurrer to the first cause of action.

Third Cause of Action for Fraud

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [citations omitted].)

Fraud must be pleaded with specificity. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 [citation omitted].)

Plaintiffs allege:

- Prior to Weber entering into the Weber-GCI Stock Sale Agreement, Morado represented GCI would pay on the \$75,000 post-dated GCI Note Paydown Check required by the Weber-GCI Stock Sale Agreement. (FAC ¶ 110.)
- At the time Morado made the representation, she knew she could not and would not pay the \$75,000 post-dated GCI Note Paydown Check. (FAC ¶ 111.)
- Morado intended to induce Weber to enter into the Weber-GCI Stock Sale Agreement by making that representation and Weber believed Morado/GCI's representation was true. (FAC ¶¶ 110, 112.)
- In reliance on the representation, Weber entered into the Weber-GCI Stock Sale Agreement and provided and transferred a 50% interest in Daian Corporation worth at least \$350,000 to GCI. (FAC ¶¶ 113, 116.)
- Weber reasonably relied on Morado and GCI's representation as Morado has previously performed as Morado had represented under the Morado-Weber Stock Sale Agreement. (FAC ¶ 114.)

- If Weber had been aware that Morado/GCI's representation was untrue, Weber would not have entered into the Weber-GCI Stock Sale Agreement. (FAC ¶ 115.)

These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the third cause of action.

Fourth Cause of Action for Violation of Penal Code Section 496

Penal Code section 496, subdivision (a) makes it a crime to knowingly receive, buy, sell, conceal, or withhold stolen property. Penal Code section 496, subdivision (c) authorizes an action for treble damages and attorney's fees for "[a]ny person who has been injured by a violation of subdivision (a) or (b)."

"To prove theft, a plaintiff must establish criminal intent on the part of the defendant beyond 'mere proof of nonperformance or actual falsity.' . . . This requirement prevents '[o]rdinary commercial defaults' from being transformed into a theft." (*Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal.5th 333, 361-362 [citations omitted].) Acting with "careful planning and deliberation" may reflect the requisite criminal intent. (*See id.* at p. 362.)

While Plaintiffs allege Morado knew she could not pay the \$75,000 post-dated GCI Note Paydown Check (FAC ¶ 111), the Court does not find this demonstrates the requisite criminal intent required by Penal Code section 496.

The Court SUSTAINS the demurrer to the fourth cause of action with 20 days leave to amend.

Fifth Cause of Action for Violation of the Unfair Competition Law (UCL)

Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th 163, 180.) "By proscribing 'any unlawful' business practice, 'section 17200 'borrows' violations of other laws and treats them as unlawful practices' that the unfair competition law makes independently actionable." (*Ibid.* [citations omitted].) Virtually any law or regulation can serve as predicate for a section 17200 "unlawful" violation. (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 681 [citation omitted].)

Plaintiffs allege Defendants violated "California Penal Code §§476, 476a, 496, California Civil Code §1719, California Civil Code §§ 1709 and 1710; Cal. Health and Saf. Code, § 1748(a); Cal. Code Regs. Title 22, §§ 74659, 74661, and 74663." (FAC ¶ 152.)

		Penal Code section 476a makes it a crime to willfully or with the intent to defraud make or deliver a check while knowing there are insufficient funds for its payment. As discussed above, Plaintiffs sufficiently alleged Morado represented GCI would pay on the \$75,000 post-dated check while knowing she could not and would not actually pay. (FAC ¶¶ 110, 111.) Plaintiffs allege Morado made these representations to induce Plaintiffs to enter into the Weber-GCI Stock Sale Agreement. (FAC ¶ 110.) Additionally, Health & Safety Code section 1748, subdivision (a) and Code of Regulations Title 22, section 74659 prohibit the operation of a hospice/home health agency without a license. Plaintiffs allege Morado did not change over the licensed ownership of PEC Hospice or PEC Healthcare and that those licenses were not transferable to Morado or GCI pursuant to California law. (FAC ¶¶ 72-75.) As such, Plaintiffs allege Morado and GCI have been operating PEC Hospice and PEC Healthcare without obtaining a license from the California Department of Public Health since at least 7/1/25. (FAC ¶ 77.) This is sufficient to allege a violation of Health & Safety Code section 1748, subdivision (a) and Code of Regulations Title 22, section 74659. The Court OVERRULES the demurrer to the fifth cause of action.
13.	BEEHIVE.COM, LLC VS. GLEISINGER 2023-01348798	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Defendant Joseph Allan Gleisinger’s Motion to Compel Compliance with Deposition Subpoenas is DENIED. On 4/22/25, the Court appointed a discovery referee regarding “all discovery disputes in this matter...” Defendant contends that, “A discovery referee’s role, if any, does not extend to adjudicating third-party subpoena enforcement” under Code of Civil Procedure section 1987.1.” (Motion, 1:15-16.) However, Defendant stated he “notified” the referee of this dispute in November 2025. (Id. at 3:25-28, Ex. F.) On 3/24/26, the Court granted Plaintiff’s motion to enforce the discovery referee order at risk of further sanctions if Defendant did not comply, but Defendant did not withdraw the present motion. Plaintiff opposes the motion on the grounds that, “Gleisinger offers no legal authority for this proposition or any legal authority that would undermine the Court’s Order Appointing Referee.” (Opp., 2:24-25.) Defendant requests sanctions of \$1,050.00 based on Gleisinger’s filing of the present motion in violation of the referee order, which has forced Plaintiff to expend 3 hours of attorney time at \$350/hour.

		In reply, Defendant states, “Gleisinger accepts that the May 5, 2025 reference extends to this discovery dispute and is concurrently submitting the complete motion record to the Referee in compliance with the Court’s July 1, 2026 Order.” (Reply, 2:20-21.) Gleisinger asserts the referee has failed to adjudicate this dispute. However, Gleisinger has made contradictory assertions regarding whether the referee has the authority to adjudicate this issue and the “Notice” Gleisinger filed with the referee was not clearly identified as a request for the referee to adjudicate the issue. The motion was filed on 1/30/26 in violation of this Court’s 4/22/25 order appointing a discovery referee. Defendant failed to withdraw this motion after being admonished to comply with that order. Plaintiff was forced to incur attorney fees responding to the motion which should have been pursued via the discovery referee. The motion is therefore denied and Plaintiff’s request for sanctions against Defendant is granted in the amount of \$1,050.00, due and payable within 30 days.
14.	LAW OFFICES OF MARK B. PLUMMER, PC VS. ALAI 2018-01002061	1. MOTION TO VACATE Defendant Nili Alai’s Motion to Amend or Vacate the 3/4/26 Order Reopening Discovery is DENIED. On 3/4/26, the Court granted Plaintiffs/Cross-Defendants’ ex parte application to reopen discovery as to movant’s First Amended Cross-Complaint. The 3/3/26 application to reopen discovery was served on 3/3/26 at 11:40 a.m. via email. The Court ruled on the application at approximately 1:30 p.m. on 3/4/26. The order stated no opposition had been filed and there were no appearances by any party. Defendant contends the application was untimely noticed and the Court did not have the opportunity to consider Defendant’s opposition, which was filed at approximately 9:30 a.m. on 3/4/26. California Rules of Court, Rule 3.1203(a) provides, “A party seeking an ex parte order must notify all parties no later than 10:00 a.m. the court day before the ex parte appearance, absent a showing of exceptional circumstances that justify a shorter time for notice.” Therefore, Plaintiffs’ notice of the application was nearly two hours late. Plaintiffs’ counsel also did not submit a declaration regarding notice in compliance with Rule 3.1204. This motion was filed on 3/24/26. The motion did not comply with the statutory ten-day deadline for a motion for reconsideration. (Code Civ. Proc. § 1008(a).) Moreover, although the Court retains inherent power to vacate or modify its prior discovery orders, the Court declines to do so here.

(Code Civ. Proc. § 128(a)(8).) Defendant has failed to demonstrate prejudice because Defendant's opposition to the ex parte application, if it had been considered by the Court, would not have changed the Court's 3/4/26 decision to reopen discovery.

Finally, Defendant argues Plaintiffs were required to file a motion under Code of Civil Procedure section 2024.050 in order to reopen discovery. However, Plaintiffs' application sufficiently requested relief based on factors set out in section 2024.050 even though it failed to cite the relevant Code section.

In future, the Court expects the parties to provide timely notice of any ex parte application. Failure to provide timely notice will be grounds for denial.

The trial date is firm and all parties are expected to diligently complete discovery in compliance with applicable deadlines. Failure to do so may result in monetary, issue, evidentiary, or terminating sanctions and/or waiver of discovery rights.

2. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS

Plaintiffs/Cross-Defendants' Motion to Compel Nili Alai's Further Responses to Requests for Admissions – Set One ("RFAs") is GRANTED.

Movants assert the discovery responses are required by the Court's 3/4/26 order reopening discovery. On 4/2/26, Respondent served objections only, asserting that the 3/4/26 order was improperly obtained and should be vacated.

In opposition, Alai reiterates her arguments discussed above regarding the 3/4/26 order. Alai also contends there are 95 RFAs and the RFAs in excess of the 35-request limit are not justified under Code of Civil Procedure section 2033.040.

As stated above, the Court declines to vacate or reconsider the 3/4/26 order.

The Court finds that movants' declaration under Code of Civil Procedure section 2033.030 is sufficient to justify the number of RFAs.

Responding party shall serve substantive verified responses to the subject discovery within ten calendar days of this order.

The Court declines to award sanctions because both parties had some justification for their position.

3. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS

Plaintiffs/Cross-Defendants' Motion to Compel Siamak Nabili's Further Responses to Requests for Admissions – Set One is GRANTED.

Nabili raises similar arguments in opposition to those raised by Alai in her opposition discussed above.

Responding party shall serve substantive verified responses to the subject discovery within ten calendar days of this order.

The Court declines to award sanctions.

4. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES

Plaintiffs/Cross-Defendants' Motion to Compel Nili Alai's Further Responses to Form Interrogatories – Set One is GRANTED.

The motion is granted on the same grounds set out above.

Responding party shall serve substantive verified responses to the subject discovery within ten calendar days of this order.

The Court declines to award sanctions.

5. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES

Plaintiffs/Cross-Defendants' Motion to Compel Siamak Nabili's Further Responses to Form Interrogatories – Set One is GRANTED.

The motion is granted on the same grounds set out above.

Further, to the extent Nabili argues the requests are duplicative of previously-served discovery, Nabili has not shown that any duplicative requests are so burdensome as to justify denial of the motion.

Responding party shall serve substantive verified responses to the subject discovery within ten calendar days of this order.

The Court declines to award sanctions.

6. MOTION TO DISMISS

Defendant Nili Alai's Motion to Dismiss for Failure to Bring Action to Trial within Five Years is DENIED.

Legal Standard:

Code of Civil Procedure section 583.310 states, “An action shall be brought to trial within five years after the action is commenced against the defendant.”

Code of Civil Procedure section 583.340 states, “In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed:

- (a) The jurisdiction of the court to try the action was suspended.
- (b) Prosecution or trial of the action was stayed or enjoined.
- (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.”

“Exceptions to mandatory dismissal include: “(1) written stipulations or oral agreements made in open court extending the five-year time period; (2) exclusion from the computation of the five years any time period during which the jurisdiction of the court was suspended or the prosecution of the action was stayed; and (3) bringing the action to trial was impossible, impracticable, or futile. [Citations] (*Jordan v. Superstar Sandcars* (2010) 182 Cal.App.4th 1416, 1420–1421.)

Application:

Defendant contends this action was filed on 6/27/18 and the five-year deadline passed on 6/27/23. Alternatively, even assuming various stays were in place, Defendant argues the deadline passed on 5/1/25.

Plaintiffs contend Defendant’s litigation conduct has resulted in numerous stays, which total 1,527 days at this time, and the five-year rule does not expire until early 2028.

At the Trial Setting Conference on 12/12/25, the Court set trial for 9/18/25. There was no appearance by Defendant or her counsel at the Trial Setting Conference.

This case has been stayed for the following time periods:

1. 11/15/18 – 2/5/19 due to Defendant Alai’s filing of a vexatious litigant motion.
2. 6/27/19 – 9/10/19 due to Defendant’s filing of another vexatious litigant motion.
3. 12/18/18 – 11/12/20 due to filing and appeal of Anti-SLAPP Motion to Strike.
4. The foregoing three stays overlapped for a cumulative stay lasting from 11/15/18 – 11/12/20, i.e. 1 year, 11 months, and 28 days [728 days].
5. 9/24/21 – 3/8/22 due to Cross-Complainant Nabili’s filing of another vexatious litigant motion. (5 months, 14 days [165 days].)

		6. 10/3/23 – 2/13/24, due to Plaintiff’s filing of a vexatious litigant motion which was granted as to Alai’s cross-complaint on 2/13/24. (3 months 21 days [113 days].) 7. 4/24/24 – 2/4/25 based on the Court of Appeal’s order granting a stay of the entire case while vexatious litigant motion was on appeal pursuant to Defendant’s motion filed in the appellate court. (9 months 11 days [286 days].) 8. 6/10/25 – 11/25/25 due to Defendant’s filing of another vexatious litigant motion. (5 months 15 days [168 days].) In summary, the case was filed eight years, one month, and 15 days ago [2,967 days] as of 8/11/26. However, the entire case has been stayed for a total of at least 1,460 days, meaning the case has been active for only 1,507 days as of 8/11/26 and the case will be approximately four years, two months, and 23 days [1,545 days] old as of the trial date on 9/18/26. In reply, Alai argues the anti-SLAPP appeal in 2019 did not stay the entire case, which would reduce the total stayed time by 429 days because the case was not stayed as to the complaint between 9/10/19 and 11/12/20. In support of her argument, Defendant cites Judge Schwarm’s tentative ruling dated 1/14/20, which stated in part as to Defendant’s motion for a stay that, “The court DENIES the Motion to the extent it seeks to stay the entire action. The court GRANTS the Motion to the extent it seeks to stay Cross-Defendant’s (Jocelyn Plummer) pending Motion for Terminating Sanctions against the Cross-Complainants...” (Defendant’s Req. for Jud. Notice, p. 98.) However, Judge Schwarm’s final ruling reflected in the 1/14/20 minute order stated in part, “The Court DOES NOT Adopt and Confirm its tentative ruling as to Motion No. 1. The Parties have agreed to a discovery stay on this matter pending the determination of the appeal regarding the Court’s decision on the Anti-Slapp Motion. All parties agree to stay all proceedings pending the appeal.” Therefore, the entire case was stayed during the anti-SLAPP appeal pursuant to all parties’ agreement. Defendant’s litigation strategy has resulted in extensive stays of this case. Moreover, Defendant failed to appear and object to the trial date at the Trial Setting Conference on 12/12/25. Therefore, the motion is denied.
15.	ECKHOFF VS. FAMILIES FORWARD 2026-01574381	ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION Petitioner Stephanie Eckhoff’s motion for a Preliminary Injunction restraining and enjoining Respondent Families Forward from taking any action to further terminate her program status or her continued possession of the premises located at 17 Cascade, Irvine, CA 92605 is CONTINUED to 9/8/26 at 9:00 a.m. in Department C32.

	On 7/3/26, the Court ordered Petitioner to file a proof of service of the Amended Petition and supporting documents as well as Petitioner's request for a Temporary Restraining Order and the Court's 6/16/26 Order granting the Temporary Restraining Order and order to show cause why a preliminary injunction should not issue on all parties. (ROA 81.) While Petitioner filed proofs of service on the original Respondent and the newly added parties on 7/20/26, they do not reflect service of Petitioner's request for a Temporary Restraining Order and the Court's 6/16/26 Order granting the Temporary Restraining Order and order to show cause why a preliminary injunction should not issue on all parties as ordered by the Court on 7/3/26. The Temporary Restraining Order issued on 6/16/26 to remain in effect until the continued hearing. The Court ORDERS Plaintiff to give notice by 8/17/26.
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